

25STCV34697 25STCV34697

County: los-angeles

Division: Civil Law and Motion

Department: 734

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Case Number: 25STCV34697 Hearing Date: September 18, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:00 PM on September 17, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on September 17, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to smcdept734@lacourt.org, with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff

tenant alleges that Defendant purchasers of the residential property which Plaintiff rented engaged in various activities to force Plaintiff to vacate the property.

Defendants

Brett Daniels, Atlas Real Estate Corporation and Ian Daniels, Trustee of the 2010
Brett Daniels Grantor Trust demur to the First Amended Complaint.

TENTATIVE RULING

Defendants

Brett Daniels, Atlas Real Estate Corporation and Ian Daniels, Trustee of the 2010
Brett Daniels Grantor Trust's demur to the First Amended Complaint is **OVERRULED**
as to the first, second, third, fourth and sixth causes of action and **SUSTAINED**
without leave to amend as to the seventh, eighth, ninth, tenth and eleventh
causes of action.

Defendants are to answer the remaining allegations of the
First Amended Complaint within 10 days.

ANALYSIS

Demurrer

Request For Judicial Notice

Defendants

request that the Court take judicial notice of the following:

1. Complaint filed by Tamu Blackwell as Plaintiff
in propria persona on November 2, 2020, at the Los Angeles Superior Court, LASC
Case No. 20STCV41858, titled: "Tamu Blackwell vs. McCarty Memorial Chrisitan Church,
etc., et. al."

2. Deeds recorded with the Los Angeles County Recorder,
which are the Recorders official records of the ownership of the real property currently
known as 2527 11th Avenue, Los Angeles, California, for the time period commencing
June 21, 1951, through June 5, 2024.

Request

No. 1 is GRANTED per Evid. Code § 452(d)(court records).

Request

No. 2 is GRANTED. The Court may take judicial notice of recorded documents. (Evans v. California Trailer Court, Inc. (1994) 28 Cal.App.4th 540, 549, overruled on other grounds in Black Sky Capital, LLC v. Cobb (2019) 7 Cal.5th 156, 165; Alfaro v. Community Housing Improvement System & Planning Assn., Inc. (2009) 171 Cal.App.4th 263, 274).

Plaintiff

requests that the Court take judicial notice of the following:

Exhibit A – page 15 of 16 of the executed California Residential Purchase Agreement and Joint Escrow Instructions (RPA) for the subject property.

Exhibit B – official Court Reporter's Transcript from Plaintiff's 2020 action.

The

request is DENIED as to Exhibit A. This is evidence extrinsic to the First Amended Complaint, nor was it attached as an exhibit to the First Amended Complaint.

The

requests is GRANTED as to Exhibit B. This transcript is attached to the first Amended Complaint and thus is part of that pleading.

Meet and Confer

The

Declaration of Richard J. Greene reflects that Defendant's' counsel satisfied the meet and confer requirement set forth in Civ. Proc. Code, § 430.41.

Discussion

The Court has

reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

Defendants

Brett Daniels, Atlas Real Estate Corporation and Ian Daniels, Trustee of the 2010 Brett Daniels Grantor Trust demur to the First Amended Complaint as follows:

1. First

Cause of Action (Civil Conspiracy).

Defendants

argue that this purported cause of action is not recognized in California, thus providing no subject matter jurisdiction to be adjudicated.

“Conspiracy is not a cause of action, but a legal doctrine that imposes liability on persons who, although not actually committing a tort themselves, share with the immediate tortfeasors a common plan or design in its perpetration. ... [¶] Standing alone, a conspiracy does no harm and engenders no tort liability. It must be activated by the commission of an actual tort.” (Citation omitted.) “A conspiracy cannot be alleged as a tort separate from the underlying wrong it is organized to achieve.” (Citation omitted.)

(Moran v. Endres

(2006) 135 Cal.App.4th 952, 954-55.)

The

Complaint alleges:

135. Plaintiff

is informed and believes, and thereon alleges, that Defendant ERROL FENTY (“FENTY”), a licensed real estate professional, acted as a “facilitator” in the conspiracy between Defendant ANDERSON and Defendant DANIELS to illegally vacate the Subject Property.

. .

138. Plaintiff

is informed and believes, and thereon alleges, that FENTY’S motive for participating in this conspiracy was financial gain, specifically to assist Defendant DANIELS in clearing the property of long-term tenants to maximize the profit of a future “flip” sale to a third party.

. . .

200. Plaintiff

incorporates by reference all prior allegations. Plaintiff is informed and believes,

and thereon alleges, that Defendants ANDERSON, MMCC, DANIELS, and NOLA INVESTMENT SOLUTIONS, LLC, ANDERSON DANIELS-STOCK, ARAUJO and FENTY entered into

a knowing and intentional agreement to engage in a “constructive eviction” scheme.

201. The objective

of this conspiracy was to harass and coerce Plaintiff into vacating the premises during the COVID-19 pandemic, thereby bypassing formal eviction protections and allowing Defendants to “flip” the property for a higher profit.

202. In furtherance

of this conspiracy, Defendants committed several overt acts, including but not limited to:

∟ The Intentional Exposure: Authorizing uncontained power blasting of lead-based paint to create a toxic and uninhabitable environment.

∟ The Denial of Notice: Failing to provide mandated EPA lead-hazard disclosures to keep Plaintiff unaware of the risks.

∟ Political Concealment: Defendant ANDERSON using his position of authority to shield the operation from public scrutiny to protect his City Council District 10 candidacy.

(1AC, ¶¶ 135, 138, 200 - 202 [bold emphasis added].)

In

this regard, if at least one theory based on illegal action intended to force Plaintiff to vacate the survives demurrer, then the conspiracy allegation would also survive demurrer.

Defendant’s

argument that the conspiracy is inadequately pled is not persuasive. As discussed above, the objective of the conspiracy is pled, in part, as Defendant Daniels wanting to illegally vacate the property to flip it. Plaintiff would be entitled to conduct discovery to obtain evidence of such alleged conspiracy.

To plead civil conspiracy liability, the complaint must

allege: 1) Defendant’s agreement to the course and objective to injure; 2) wrongful

act pursuant to such agreement; and 3) resulting damage. (Berg & Berg Ent., LLC v. Sherwood Partners, Inc. (2005) 131 Cal.App.4th 802, 823.) In pleading conspiracy, the allegations cannot be based on “bare legal conclusions, inferences, generalities, presumptions and conclusions”.

(See Nicholson v. McClatchy Newspapers (1986) 177 Cal.App.3d 509, 521.)

The demurrer to the first cause of action
is OVERRULED.

2. Second

Cause of Action (Breach of Implied Warranty of Habitability—Civil Code § 1941.1).

Defendants

argue that this cause of action is barred by the applicable statute of limitations.

The

second cause of action is based on the following allegation:

219. By power-blasting

the exterior for 47 days and releasing high levels of lead dust (as confirmed by the lab report, Defendants breached this warranty [of habitability].

(1AC, ¶ 219.)

The applicable

statute of limitations appears to be the three-year statute of limitations set forth in Code Civ. Proc. § 338(a) applicable to an action upon a liability created by statute, other than a penalty or forfeiture. Under a three-year statute of limitations, this action was timely filed on December 1, 2025 measured from the May 2023 to June 2023 period of the alleged sandblasting of lead paint that took place between May 22, 2023 and June 2023. (1AC, ¶¶ 108 – 128.)

Defendant

also argues that Civil Code § 1941.1 applies to a landlord. Daniels^[1] is alleged to be a real estate professional who was engaged in the conspiracy (see discussion above) and the Brett Daniels 2010 Trust is alleged to be the owner of the subject property. (1AC, ¶¶ 19 – 27.) There are sufficient allegations to state a cause of action against demurring Defendants.

This
ground for demurrer is not persuasive.

The
demurrer to the second cause of action is OVERRULED.

3. Third
Cause of Action (Breach of Covenant of Quiet Enjoyment—Civil Code § 1927).

Defendants
argue that this cause of action is barred by the applicable statute of limitations.

The
third cause of action is based on the following allegation:

223. Plaintiff
incorporates by reference all prior allegations. Defendants' 47-day campaign of
toxic blasting and the service of more than 20 harassing notices constituted a substantial
interference with Plaintiff's right to peaceably occupy the home.

(1AC, ¶ 223.)

Based
on the sandblasting allegations, the Court incorporates by reference its discussion
above re: the second cause of action. For those reasons, the third cause of action
is not time-barred.

The
demurrer to the third cause of action is OVERRULED.

4. Fourth
Cause of Action (Violation of Los Angeles Tenant Anti-Harassment Ordinance (TAHO)
(LAMC §45.30 et seq. / Civil Code § 1940.2)

Defendants
argue that this cause of action is barred by the applicable statute of limitations.

Under
LAMC § 45.35, Plaintiff seeks Triple (Treble) Damages for mental and emotional distress.

Civil Penalties \$10,000 per violation. Attorney's Fees and costs. LAMC § 45.35(G) provides for a three year statute of limitations.

The
conduct on which this cause of action is based is as follows:

1AC,
¶ 228:

Defendants engaged
in bad-faith harassment in violation of LAMC § 45.33 by:

1. Filing a false action based on fabricated assault claims to coerce a vacancy.
2. Interfering with quiet enjoyment through a 47-day "power-blasting" campaign that saturated the home with toxic lead dust.

1AC,
¶ 236: "Using Fraud and Misrepresentation by coordinating with a loan broker to bring false assault charges in a judicial proceeding."

It
appears the underlying allegations regarding this false assault charge is pled at
¶¶ 101 and 102 of the 1AC as follows:

101. On
September 7, 2023, was the date Defendants Daniels-Stock and Arujo filed against Plaintiff, a permanent restraining order, alleging Plaintiff ordered her daughter and her next-door neighbor on the morning of August 16, 2022, to physical assault Defendant Arujo, resulting in her suffering two surgeries and six months of physical therapy to relearn how to walk.

102. On
November 27, 2023, after the bench trial, the sitting Judge ruled in Defendant's favor and dismissed the case citing in part "...there's nothing here that would constitute violence, threats of violence, or a course of conduct that would seriously alarm, annoy, and harass a reasonable: person. Case #23CHR001672, Exhibit 8. Pages 57-58

As

to the “power-blasting” campaign that saturated the home with toxic lead dust, ¶¶ 109 – 118 allege:

109. On or

about May 21, 2023, Defendant Daniels-Stock asked Plaintiff if his crew could use her electricity to power the batteries on the power tools they will be using to power blast the current exterior paint off the exterior structure, so his crew could repaint with new paint.

110. Plaintiff

said no, explaining the structure was built in 1910 and Plaintiff was sure the existing paint was lead paint.

111. Plaintiff

observed Defendant Daniels-Stock, walk from the apartment building entrance to CEO Anderson’s 11th Avenue office entrance—a walk of less than one minute.

112. Plaintiff

is informed and believes, and thereon alleges that Defendant CEO Anderson wasn’t in his office, but Daniels-Stock and Anderson spoke on the phone, and it was at that time, Anderson gave Daniels-Stock permission to use MMCC’s electricity

113. Nola Investment

Solutions, LLC’s crew used MMCC’s electricity the entire time they power blasted paint off the structure’s exterior.

114. On July

3, 2023, Plaintiff retained the services of Quantum Environmental Testing, Inc. to conduct a professional lead hazard assessment of the Subject Property.

115. The purpose

of this inspection was to collect and analyze samples of paint chips and settled dust that had accumulated on the lawn, porch, exterior garbage receptacles, and the primary entry doorway as a direct result of the uncontained power blasting conducted by Defendants’ agents.

116. On July

7, 2023, Plaintiff received the “Limited Lead-Based Paint Chip Inspection Report” from Quantum Environmental Testing, Inc. (the “Report”).

117. The Report

confirmed the presence of hazardous materials, stating: “The laboratory results indicate Lead-Based Painted Surfaces (LBPs) and/or Lead-Containing Paint (LCPs) and or Materials were identified in the area(s) of proposed disturbance.” A true and correct copy of this Report is attached hereto as Exhibit 11 and incorporated by reference.

118. Following

the receipt of the Report, Plaintiff suffered, and continues to suffer, severe emotional distress and physical anxiety due to the confirmed presence of lead-based toxins in the immediate living environment.

(1AC, ¶¶ 109 – 118 [bold emphasis added].)

In

that all of the above conduct occurred in 2023, the Complaint in this action was filed on December 1, 2025, which is timely under the three-year statute of limitations set forth in LAMC § 45.35(G). This cause of action is not time-barred.

Moreover,

as discussed above re: the second cause of action, Daniels is alleged to be a real estate professional who was engaged in the conspiracy (see discussion above) and the Brett Daniels 2010 Trust is alleged to be the owner of the subject property.

(1AC, ¶¶ 19 – 27.) There are sufficient allegations to state a cause of action against demurring Defendants.

The

demurrer to the fourth cause of action is OVERRULED.

5. Sixth Cause

of Action (Violation of California Civil Code § 1940.2).

Defendants

argue that this cause of action is barred by the applicable statute of limitations.

The sixth cause

of action—for violation of a statute[2]—is based on the following allegations:

251. Under Civil Code § 1940.2, it is unlawful for a landlord to use fraud, intimidation, or menacing conduct to influence a tenant to vacate a dwelling.

252. Defendants violated this statute by intentionally exposing a disabled adult child to toxic lead dust and weaponizing the daughter's professional credentials through false allegations of violence.

The Court incorporates by reference its discussion above re: the second cause of action. For those same reasons, the demurrer to the sixth cause of action is OVERRULED.

6. Seventh Cause of Action (Negligence and Negligence Per Se).

Defendants argue that this cause of action is barred by the applicable statute of limitations.

Defendants also argue that the power-blasting and toxic dust activities were performed by persons other than demurring parties.

This cause of action is based upon the following allegations:

256. Defendant CARLA ARILA SILVA ARAUJO self-identified as the contractor responsible for the exterior renovation and power-blasting of the premises. As a contractor and agent for the owners, she owed a duty of care to Plaintiff to perform such work in a safe, professional manner that complied with all health and safety regulations.

257. Under California Health and Safety Code § 17920.10, it is a violation of law to disturb lead-based paint without following specific lead-safe work practices. Under Negligence Per Se, Defendant Araujo's violation of this statute constitutes a breach of her duty of care as a matter of law.

258. Defendants personally directed and/or authorized a 47-day power-blasting campaign without proper containment, HEPA vacuuming, or notification to the tenants.

. . .

266. As a direct result, Plaintiff and her child were exposed to toxic lead dust, causing severe physical risk and extreme mental anguish.

(1AC, ¶¶ 256 – 258, 266.)

The foregoing occurred no later than July 7, 2023, when Plaintiff learned of the lead report results. (1AC, ¶¶ 109 – 118.) The two-year statute of limitations for personal injury, set forth in Code Civ. Proc. § 335.1 applies. The Complaint in this action was not filed until December 1, 2025. This cause of action is time-barred.

The demurrer to the seventh cause of action is SUSTAINED without leave to amend.

7. Eighth Cause
of Action (Malicious Prosecution).

Defendants argue that this cause of action is barred by the applicable statute of limitations.

The
1AC alleges as follows:

274. Defendants initiated or “instigated” Case No. 23CHR001672 against Plaintiff without probable cause. Defendants knew the allegations of violent assault were false and had no reasonable basis to believe a crime had occurred.

275. Defendants acted with malice, intending to harm Plaintiff’s reputation and cause the revocation of her daughter’s teaching credentials.

276. The prior action terminated in Plaintiff’s favor on November 27, 2023, when the court ruled that the allegations were not believable.

277. As a result,
Plaintiff suffered severe emotional distress, and reputational harm.

(1AC, ¶¶ 274 – 277 [bold emphasis added].)

The
elements of a malicious prosecution cause of action were complete on November 27,
2023.

“To establish a cause of action for the malicious prosecution of a civil
proceeding, a plaintiff must plead and prove that the prior action (1) was commenced
by or at the direction of the defendant and was pursued to a legal termination in
his, plaintiff’s, favor [citations]; (2) was brought without probable cause [citations];
and (3) was initiated with malice [citations].” (Citation omitted.)

(Lanz v. Goldstone (2015) 243 Cal.App.4th
441, 458.)

The two-year statute of limitations
period set forth in Code Civ. Proc. § 335.1 applies to malicious prosecution claims.
(Escamilla v. Vannucci (2025) 17 Cal.5th 571, 578.) The Complaint in this
action was not filed until December 1, 2025. As such, this cause of action is time-barred.

The demurrer to the eighth cause of
action is SUSTAINED without leave to amend.

8. Ninth Cause
of Action (Abuse of Process).

Defendants
argue that this cause of action is barred by the applicable statute of limitations.

The two-year statute of limitations
period set forth in Code Civ. Proc. § 335.1 applies to abuse of process claims.
(Cantu v. Resolution Trust Corp. (1992) 4 Cal. App. 4th 857, 886-87 [applying former one-year
statute of limitations applicable to personal injury claims].)

279. Defendants
utilized the “judicial machinery” for an ulterior purpose for which it was not designed.

280 The primary purpose of Case No. 23CHR001672 was not to seek justice for an assault, but to extort a vacancy and harass the Plaintiff into moving out.

281. Defendants committed a willful act in the use of the process—recruiting a loan broker to validate false testimony—that was improper in the regular conduct of a legal proceeding.

282. As a direct result, Plaintiff suffered damages, including the 90-day “terror” period.

(1AC, ¶¶
280 – 282.)

The common law tort of abuse of process arises when one uses the court's process for a purpose other than that for which the process was designed. (Citations omitted.) It has been “interpreted broadly to encompass the entire range of ‘procedures’ incident to litigation.” (Citation omitted.)

“[T]he essence of the tort [is] ... misuse of the power of the court; it is an act done in the name of the court and under its authority for the purpose of perpetrating an injustice.” (Citation omitted.) To succeed in an action for abuse of process, a litigant must establish that the defendant (1) contemplated an ulterior motive in using the process, and (2) committed a willful act in the use of the process not proper in the regular conduct of the proceedings. (Citation omitted.)

(Rusheen v. Cohen
(2006) 37 Cal.4th 1048, 1056-57.)

As discussed above re: the eighth cause of action Case No. 23CHR001672 was terminated in Plaintiff's favor on November 27, 2023. (1AC, ¶ 276.)

The Complaint in this action was not filed until December 1, 2025. As such, this cause of action is time-barred.

The demurrer to the ninth cause of action is SUSTAINED without leave to amend.

9. Tenth Cause

of Action (Conspiracy To Commit Extrinsic Fraud (fraud on the court).

Defendants

argue that this purported cause of action is not recognized in California, thus providing no subject matter jurisdiction to be adjudicated.

This cause

of action is based upon the following allegation:

284. Civil Conspiracy

to commit extrinsic fraud (fraud on the court) that resulted in wrongful eviction/displacement.

Plaintiff asks for a combination of actual, special, and punitive damages, along with potential treble damages if the fraud qualifies as theft under California Penal Code § 496(c).

(1AC, ¶ 284.)

However,

Plaintiff does not have standing to assert a private cause of action for fraud on the court. While extrinsic fraud is a basis for voiding a judgment[3], this situation is not presented in this case.

The

Court finds that the statute of limitations argument is moot because there is no cause of action for civil conspiracy to commit extrinsic fraud upon the court.

The

demurrer to the tenth cause of action is SUSTAINED without leave to amend.

10. Eleventh Cause

of Action (Intentional Infliction of Emotional Distress).

Defendants

argue that this cause of action is barred by the applicable statute of limitations.

This cause

of action is based on the allegation that:

For a period of

90 days, Defendants pursued a campaign of high-stakes terror. Specifically, Defendants fabricated a narrative that Plaintiff ordered her disabled daughter and a neighbor to commit a violent assault against the owner's family member.

(1AC, ¶ 287.)

This

occurred no later than November 27, 2023, when Case No. 23CHR001672 was ordered terminated because the court ruled that the allegations of violent assault were not believable. (1AC, ¶¶ 274, 276.)

Causes of action for intentional infliction

of emotional distress are governed by the two-year statute of limitations set forth in Code Civ. Proc., § 335.1. (*Pugliese v. Superior Court* (2007) 146 Cal.App.4th 1444, 1450.) Because the Complaint in this action was not filed until December 1, 2025, this cause of action is time-barred.

The demurrer to the eleventh cause of action is SUSTAINED without leave to amend.

[1]

Defendant Atlas Real Estate Corporation is alleged to be the employer, principal, and/or affiliated brokerage for Defendants Brett Daniels and Jeremy Daniels-Stock, and is vicariously liable for their acts and omissions under the doctrine of respondeat superior. (1AC, ¶ 24.)

[2] Although Plaintiff seeks a penalty of \$10,000 for each violation—which is subject to the one-year statute of limitations set forth in Code Civ. Proc. § 340(a)—Plaintiff also seeks actual damages. (1AC, ¶ 253.) A demurrer does not lie to only part of a cause of action or a particular type of damage or remedy. (See *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2003) 108 Cal.App.4th 1028, 1046; *PH II, Inc. v. Superior Court* (Ibershof) (1995) 33 Cal.App.4th 1680, 1682.) The proper procedure is to bring a motion to strike the substantively defective allegation. (Id. at 1682-83.)

[3]

Extrinsic fraud is a broad concept

that tends to encompass almost any set of extrinsic circumstances which deprive a party of a fair adversary hearing. (Citations omitted.) Generally, it arises when one party has in some way fraudulently been prevented from presenting his or her claim or defense. (Citations omitted.) "No abstract formula exists for determining whether a particular case involves extrinsic, rather than intrinsic, fraud. 'It is necessary to examine the facts in the light of the policy that a party who failed to assemble all his evidence at the trial should not be privileged to relitigate a case, as well as the policy permitting a party to seek relief from a judgment entered in a proceeding in which he was deprived of a fair opportunity fully to present his case.' [Citation.]" (Citation omitted.) Extrinsic fraud includes a false promise of compromise that induces a party to act or refrain from acting in such a way as to deprive that party of a fair opportunity to litigate his or her case. (Citation omitted.) A finding of extrinsic fraud does not require that a party actually be physically prevented from appearing at a conference or hearing, as long as the fraudulent promise to settle or drop a litigated matter causes the party to forego an opportunity to prosecute or contest a case, or to be deprived of a fair hearing. (Citations [*775] omitted.)

(Estate of Beard (1999) 71
Cal.App.4th 753, 774-75.)